

**IN THE SUPREME COURT OF INDIA
CRIMINAL APPELLATE JURISDICTION**

SPECIAL LEAVE PETITION (CRIMINAL) NO. _____ OF 2026

(Arising out of the final judgment and order dated 15.11.2025 passed by the High Court of
Judicature at Bombay in Criminal Appeal No. 1234 of 2024)

BETWEEN:

Rahul Bhikulal Kasat
Son of Bhikulal Kasat
Resident of Pune, Maharashtra
Presently lodged at Yerwada Central Prison, Pune **PETITIONER**

VERSUS

The State of Maharashtra
Through the Public Prosecutor
High Court of Judicature at Bombay **RESPONDENT**

SYNOPSIS

The present Special Leave Petition is preferred against the final judgment and order dated 15.11.2025 passed by the Hon'ble High Court of Judicature at Bombay in Criminal Appeal No. 1234 of 2024, whereby the Hon'ble High Court was pleased to dismiss the appeal and confirm the conviction of the Petitioner under Sections 120B and 302 of the Indian Penal Code, 1860 read with Section 65B of the Indian Evidence Act, 1872, sentencing him to imprisonment for life.

The Petitioner submits that the impugned judgment is unsustainable in law inasmuch as the prosecution has failed to establish the chain of circumstantial evidence, the electronic evidence relied upon was inadmissible for want of compliance with Section 65B(4) of the Evidence Act, the FIR initially registered under Section 304A was impermissibly converted to Section 302 without fresh opportunity of cross-examination, and the motive alleged by the prosecution stood demolished by the testimony of its own witness.

LIST OF DATES

- 15.03.2023** FIR No. 234/2023 registered at Pune City Police Station under Section 304A IPC alleging accidental death of one Ramesh Deshmukh, a business associate of the Petitioner.
- 02.07.2023** Investigation under Section 173(8) CrPC revealed suspicious circumstances including alleged brake tampering; supplementary chargesheet filed converting the offence to Sections 302 and 120B IPC.
- 12.09.2023** Cognizance taken by the Sessions Court, Pune.
- 20.11.2024** Sessions Court convicted the Petitioner under Sections 302 and 120B IPC and sentenced to imprisonment for life.
- 04.12.2024** Criminal Appeal No. 1234/2024 filed before the High Court of Judicature at Bombay.
- 15.11.2025** Hon'ble High Court dismissed the Criminal Appeal and confirmed the conviction and sentence.

Pending Present Special Leave Petition filed challenging the said judgment.

GROUND

A. INADMISSIBILITY OF ELECTRONIC EVIDENCE UNDER SECTION 65B

The Hon'ble High Court has gravely erred in upholding the conviction based substantially on CCTV footage produced by the prosecution as Exhibit P-14, which was tendered in evidence without a certificate under Section 65B(4) of the Indian Evidence Act, 1872. It is well settled by this Hon'ble Court in *Anvar P.V. vs. P.K. Basheer* (2014) 10 SCC 473 and subsequently clarified in *Arjun Panditrao Khotkar vs. Kailash Kushanrao Gorantyal* (2020) 7 SCC 1, that compliance with Section 65B(4) is a condition precedent to the admissibility of electronic evidence. The absence of such certificate renders the footage inadmissible, and the trial court fell into grave error by relying upon such inadmissible evidence to establish the presence of the Petitioner at the scene.

B. IMPROPER CONVERSION OF FIR FROM SECTION 304A TO SECTION 302

The FIR in the present case was initially registered on 15.03.2023 under Section 304A IPC treating the death of the deceased as accidental. The Investigating Officer subsequently, on 02.07.2023, filed a supplementary chargesheet converting the offence to Sections 302 and 120B IPC. While Section 173(8) CrPC permits further investigation, the Petitioner was denied a meaningful opportunity to recall and cross-examine the prosecution witnesses whose statements were recorded under the original accidental-death theory. This procedural infirmity vitiates the trial and causes grave prejudice to the Petitioner, as held by this Hon'ble Court in *Rohit Sharma vs. State of Haryana* (2018) 5 SCC 788.

C. MOTIVE DEMOLISHED BY PROSECUTION'S OWN WITNESS

The entire foundation of the prosecution's case rests upon the alleged motive of a financial dispute between the Petitioner and the deceased concerning a real estate partnership. However, during cross-examination, PW-7 Shri Manoj Kamble, who was a former employee of the Petitioner and was cited by the prosecution itself, categorically stated that the said financial dispute had been amicably resolved through mediation approximately six months prior to the date of the incident. This testimony, coming from a prosecution witness, comprehensively demolishes the motive theory on which the entire edifice of circumstantial evidence has been constructed. As held by this Hon'ble Court in numerous decisions, where the motive in a case of circumstantial evidence is destroyed by the prosecution's own witness, the benefit of the consequential doubt must accrue to the accused.

D. INCOMPLETE CHAIN OF CIRCUMSTANTIAL EVIDENCE

The prosecution case rests entirely on circumstantial evidence. The law as laid down in *Sharad Birdhichand Sarda vs. State of Maharashtra* (1984) 4 SCC 116 requires that in cases of circumstantial evidence, the chain must be complete and must exclude every reasonable hypothesis consistent with innocence. In the present case, the last-seen evidence is separated from the incident by more than fourteen hours; the recovery of the alleged weapon is not conclusively linked to the crime by forensic evidence; and the motive, as submitted hereinabove, stands demolished. The chain is manifestly broken.

E. VIOLATION OF ARTICLE 21

The cumulative effect of the procedural and evidentiary infirmities set out hereinabove amounts to a denial of fair trial, which is an integral component of the right to life and personal liberty under Article 21 of the Constitution of India. The conviction cannot therefore be sustained.

PRAYER

In light of the facts and circumstances set out hereinabove, it is most respectfully prayed that this Hon'ble Court may graciously be pleased to:

- (a) Grant Special Leave to Appeal against the impugned final judgment and order dated 15.11.2025 passed by the Hon'ble High Court of Judicature at Bombay in Criminal Appeal No. 1234 of 2024;
- (b) Upon grant of leave, allow the appeal and set aside the conviction and sentence of the Petitioner under Sections 302 and 120B of the Indian Penal Code, 1860;
- (c) Pass such further or other orders as this Hon'ble Court may deem just, fit and proper in the facts and circumstances of the case.

FILED ON: _____

DRAWN AND FILED BY:

Atul Babasaheb Deshmukh

Advocate-on-Record

Supreme Court of India

Code: [XXXX]